

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CLCL029610: CAPITAL ONE NA vs WHITNEY E SMITH

08/18/2026 in Department 20

Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. **If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.**

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement

Tentative: The Court intends to rule as follows: Plaintiff's Request for Judicial Notice is GRANTED (Evid. Code § 452, subd. (c).) Plaintiff's Motion To Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement is GRANTED. The dismissal entered on January 2, 2025, is vacated.

Pursuant to the Stipulation Agreement Jurisdiction Retained Under Code of Civil Procedure §664.6, and evidence of Defendant's default (Sherrill Dec. ¶¶ 2-7), the Court enters judgment in favor of Plaintiff in the principal sum of \$6,063.00, and court costs in the sum of \$583.61 for a total judgment of \$6,646.61.

Plaintiff shall provide notice.